

ORDINANCE NO. 7
(Series 2026)

AN ORDINANCE AMENDING CODE SECTION 10.18.060 OF THE GEORGETOWN MUNICIPAL CODE CONCERNING HAUL ROUTE REGULATION PERMIT CONDITIONS

WHEREAS, the Town of Georgetown is a Colorado municipal corporation operating under a Territorial Charter and governed by its Board of Selectmen; and

WHEREAS, the Georgetown Board of Selectmen ("Board") is authorized by the Territorial Charter and the Colorado Revised Statutes to enact ordinances for the preservation of the public health, safety, and welfare; and

WHEREAS, in the exercise of this authority, the Board has previously adopted Chapter 18 of Title 10 of the Municipal Code, (the "Code") entitled "haul route regulations," and

WHEREAS, while the existing permit framework for haul route regulation provides a foundation for regulating hauling activities, increasing levels of commercial hauling and construction-related traffic warrant additional permit requirements to ensure that roadway impacts, traffic conflicts, and maintenance costs are appropriately addressed; and

WHEREAS, in order to accomplish these purposes, the Board wishes to amend Chapter 18 of Title 10 of the Code accordingly.

NOW, THEREFORE, BE IT ORDAINED BY THE BOARD OF SELECTMEN OF THE TOWN OF GEORGETOWN, COLORADO:

Section 1. Section 10.18.020 of the Code is amended to read:

10.18.020 - Applicability and scope.

(a) These regulations shall apply to all activities involving truck haul activities through the Town using trucks in excess of twenty-four (24) feet total length and with ten (10) or more wheels, or for any trip involving an oversize load. For the purposes of this Chapter 18, "oversize load" shall be as defined by the then-current regulations of the Colorado Department of Transportation, but not greater than twenty-four (24) feet or one hundred six (106) tons GVW.

(b) THE TOWN ADMINISTRATOR IS AUTHORIZED TO IMPLEMENT AND REVISE, AS NECESSARY, THE "PERMIT APPLICATION FOR DESIGNATED TRUCK HAUL ROUTE" ADMINISTRATIVELY USED BY THE TOWN TO IMPLEMENT THIS CHAPTER 18.

Section 2. Section 10.18.030 is amended by the addition of a new subsection (c) to read:

10.18.030 – Designated haul route, scheduling and limitations.

(a) . . .

(c) THE TOWN ADMINISTRATOR MAY IMPOSE MORE RESTRICTIVE DATES AND TIMES FOR HIGH-FREQUENCY USERS TO REDUCE CONFLICTS WITH PEAK TRAFFIC PERIODS, PEDESTRIANS, AND SPECIAL EVENTS.

Section 3. Section 10.18.040 is amended by the addition of new subsections (5) and (6) to read:

10.18.040 Exemptions. The following activities are exempt from this Chapter 10.18

(1) . . .

(5) THE TOWN ADMINISTRATOR MAY EXEMPT, ON A CASE-BY-CASE BASIS, PUBLIC ROADWAY MAINTENANCE PROJECTS, PRIVATE OR QUASI-PUBLIC UTILITY EMERGENCY WORK OR CONCRETE CONSTRUCTION ACTIVITIES, FOR OPERATIONAL FLEXIBILITY AS MAY BE NECESSARY.

(6) THE TOWN ADMINISTRATOR, IN CONSULTATION WITH THE CLEAR CREEK SHERIFF, IS GRANTED AUTHORITY TO GRANT ONE OR MORE EXEMPTIONS FROM THIS CHAPTER 10.18 TO ALLOW TRUCK HAULING DURING EXTREME WEATHER EVENTS, EMERGENCIES, OR TRAFFIC DIVERSIONS. SUCH EXEMPTIONS MAY BE TO ROUTES, DURATION, TIMES OR OTHER CONDITIONS RESPONSIVE TO THE SPECIFIC SITUATION.

Section 4. Section 10.18.050 is amended by the addition of new subsections (g) and (h) to read:

10.18.050 - Permit required; process; reconsideration; appeal; DURATIONS; RENEWAL; FEES.

(a) . . .

(g) TRUCK HAUL PERMITS SHALL HAVE A STANDARD DURATION OF 90 DAYS UNLESS A SPECIFIC DURATION IS IMPOSED BY THE TOWN ADMINISTRATOR.

(h) A PERMIT FEE BASED ON THE NUMBER OF AUTHORIZED TRIPS AND ANTICIPATED ROADWAY IMPACTS SHALL BE PAID AT APPLICATION, AS SET FORTH IN THE TOWN'S PERMIT FEE SCHEDULE UNDER CODE SECTION 3.16.010.

Section 5. Section 10.18.060 of the Code is amended to read:

10.18.060 - Permit conditions.

(a) The Town Administrator may impose any of the following conditions upon an approved truck haul permit, which conditions may be more stringent than, or in addition to, the restrictions of this Chapter:

- (1) Limitations on hours and days of operation (which limitations may, in an appropriate case, permit haul hours outside 7:00 a.m. to 7:00 p.m.).
- (2) Limitations on truck weight, length and width.
- (3) Limitations on numbers of haul trips ALLOWED UNDER A SINGLE PERMIT.
- (4) ~~Limitation on duration of permit.~~
- (4) Location and parking of construction worker vehicles.
- (5) Requirements for flag persons.
- (6) Limitations on route, schedule, and duration of activities.
- (7) Any other condition required for public safety.
- (8) Mitigation requirements, including but not limited to grading, resurfacing, bridge improvements or repair, and the posting of security for the same.
- (9) Payment in advance for review of the application by professionals, including the Town Attorney, ~~and Engineer~~ ENGINEERS, AND OTHERS AS NEEDED FOR COMPLEX OR HIGH IMPACT APPLICATIONS.
- (10) PERFORMANCE BOND, LETTER OF CREDIT OR OTHER ACCEPTABLE FINANCIAL SECURITY, IN AN AMOUNT ESTABLISHED BY THE ADMINISTRATOR FOR HIGH-VOLUME HAULING OPERATIONS.
- (11) REQUIRED PRE-AND POST-HAUL PHOTOGRAPHIC DOCUMENTATION OF APPROVED HAUL ROUTES FOR PROJECTS EXCEEDING 6 TRIPS.
- (12) REQUIRED SUBMISSION OF A TRAFFIC MANAGEMENT PLAN, INCLUDING FLAGGING OPERATIONS, WHEN DEEMED NECESSARY BY THE TOWN ADMINISTRATOR.
- (13) REQUIRED SCHOOL TRANSPORTATION CONFLICT MANAGEMENT PLAN WHEN HAULING ACTIVITIES MAY AFFECT SCHOOL BUS ROUTES, STUDENT TRAVEL TIMES, OR STUDENT PICKUP OR DROP-OFF TIMES.
- (14) REQUIREMENTS ESTABLISHED BY THE TOWN ADMINISTRATOR REGARDING THE PARKING AND STAGING OF CONSTRUCTION WORKER VEHICLES.

Section 7. Effective Date. This ordinance shall take effect upon final adoption as provided by Section 5.26 of the Territorial Charter.

INTRODUCED, READ, APPROVED AND ORDERED POSTED IN FULL ON FIRST READING on the 23rd day of June 2026.

INTRODUCED ON SECOND READING, FINALLY ADOPTED AND ORDERED POSTED AFTER PUBLIC HEARING on the 23rd day of August 2026.

TOWN OF GEORGETOWN

By: Georgia Kofoed
Georgia Kofoed, Police Judge

ATTEST:

BK
Brigitte Korte, Town Clerk

Posted up in full on the Town's website and at Town Hall and two (2) other designated posting locations within the limits of the Town after final adoption, in accordance with Section 5.26 of the Territorial Charter.

BK
Brigitte Korte, Town Clerk

Date: September 2, 2026